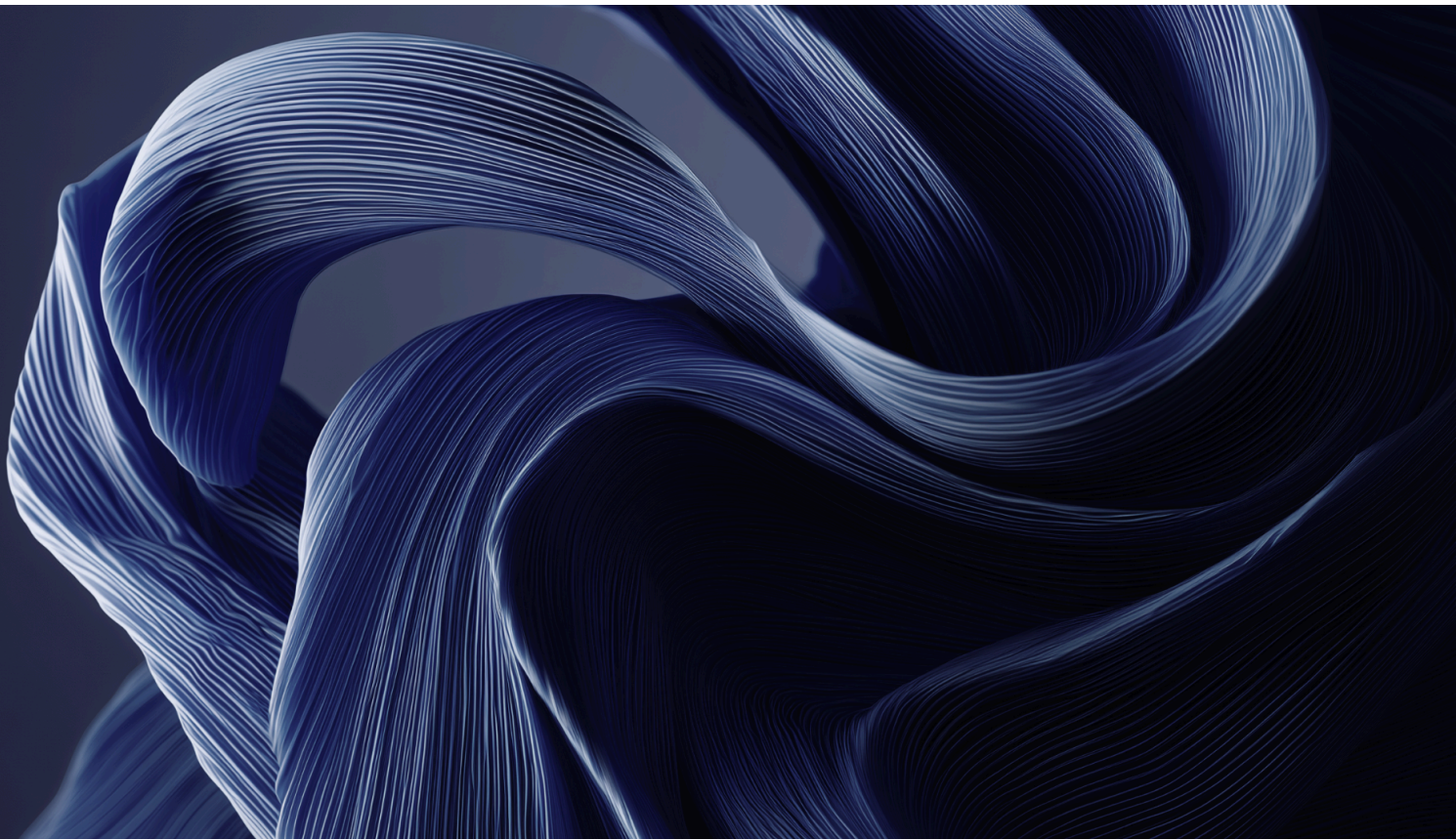


POLICY BRIEF | NOVEMBER 2025

Labeling of AI Agent Activity in Article 50 of the EU AI Act

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Executive summary

- The online activities of AI agents could distort human beliefs and behaviors. For example, humans could mistake synthetic likes and shares on social media for genuine human opinion.
- Labeling such activity as AI-generated could help society understand and address its risks, such as by helping users be more conscious of attempts to influence them.
- Article 50 (Art. 50) of the EU AI Act requires companies to label certain AI activity and is expected to be in force from 2 August 2026. However, it is unclear whether actions from AI agents are to be labeled. An upcoming Code of Practice (“Code”) will be an opportunity to clarify this issue by describing voluntary measures that, if followed, would constitute evidence of compliance with certain parts of Art. 50.¹
- I argue that Art. 50 likely requires:
 - **Web requests (e.g. online payments) and browser actions from AI agents to be labeled.** Art. 50 requires labelling of AI outputs and actions plausibly count as such. Furthermore, labelling them would serve the Article’s transparency goals, such as by helping humans distinguish AI activity from genuine human opinion. Finally, labeling of web requests and browser actions is feasible through metadata.
 - **Labels to be verifiable.** It should be possible to verify both who created a label (e.g. a particular developer) and whether it has been tampered with, because Art. 50 requires labeling to be “effective, interoperable, robust and reliable”.
- To operationalize these considerations, I propose potential text for the Code in this article’s [Appendix](#).
- Even labeling all AI actions (similarly, all AI-generated content) as synthetic could fail to provide sufficient transparency if labels are ignored or do not convey useful information, for example if the majority of online content comes to be AI-generated.

This work represents the views of its authors, rather than the views of the organisation, and does not constitute legal advice. [GovAI](#) policy briefs are short and accessible pieces that have not undergone an official peer review process.

¹ The Code will cover paragraphs 2 and 4 of Article 50. The European Commission will separately develop guidelines that will facilitate compliance with the other paragraphs of Article 50.

Introduction

The online activities of AI agents could influence humans. Although such influence is not necessarily bad, it could also distort beliefs and behaviour. For example, when an agent shares or likes political content, humans may mistake such activity for genuine human opinion.

Labeling such activity could help society understand and address its risks. For example, it could help users be more conscious of attempts to influence them, or help digital platforms enforce platform policies against, for example, influence campaigns.

[Article 50](#) (Art. 50) of the EU AI Act requires companies to label certain AI activity and is expected to be in force from 2 August 2026.² However, Art. 50 is ambiguous about whether actions from AI agents are to be labeled. In this piece, I argue that:

- Art. 50 likely requires actions to be labeled.
- Labeling web requests and browser actions is feasible by associating them with metadata (see [Figure 1](#)).
- Art. 50 additionally requires that it be possible to verify both who created a label (e.g. a particular developer) and whether it has been tampered with.

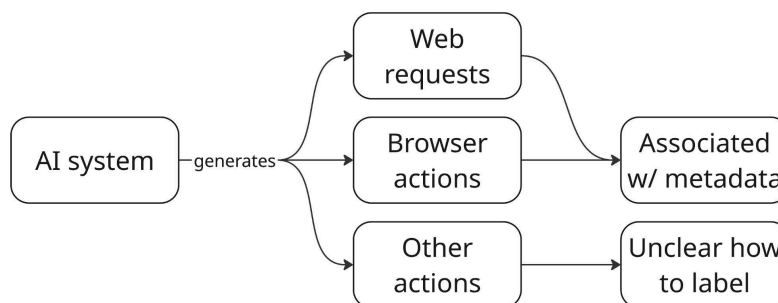


Figure 1 | AI systems can generate actions, such as web requests (e.g. retrieving [weather data](#)) and browser actions (e.g. cursor movements). These latter two types of actions can be associated with metadata.

Marking Actions

I focus on paragraph 2 of Art. 50 (Art. 50(2)), as it is the most relevant for companies that develop agents and/or serve them to users. It reads:

² The EU's [Digital Omnibus](#) proposes to extend the deadline to 2 February 2027 for AI systems placed on the market before 2 August 2026.